

BREATHWISE

Urban Tech Home Solutions
Indoor Air Quality Engineering | Delhi NCR

PROJECT SERVICES AGREEMENT

Ventilation & Indoor Air Quality Engineering Services

This Project Services Agreement (the "Agreement") is entered into on the date set out below.

Date of Agreement: _____

Project Reference / Quotation No.: _____

BETWEEN

URBAN TECH HOME SOLUTIONS (operating under the brand **BreatheWise**), a sole proprietorship having its principal place of business in Delhi NCR, hereinafter referred to as the "**Service Provider**";

AND

Client Name: _____

Client Address: _____

Project Site Address: _____

hereinafter referred to as the "**Client**".

The Service Provider and the Client are hereinafter referred to individually as a "Party" and collectively as the "Parties". This Agreement, together with the Quotation referenced above and the Client Welcome & Scope Pack issued by the Service Provider, sets out the complete terms of engagement between the Parties.

1. SCOPE OF SERVICES

1.1. Engineering services

The Service Provider shall provide indoor air quality engineering services in respect of the Project Site, comprising: (a) site assessment of pollutant load, occupancy and room volumes; (b) ventilation rate calculations and air-change-rate modelling; (c) static-pressure calculations across the proposed duct network; (d) duct sizing based on velocity and friction-loss criteria; (e) equipment specification and selection from available supplier catalogues; (f) layout design covering duct routing, grille and diffuser placement, and equipment positioning; and (g) integration of supply and extract systems within the constraints of the building.

1.2. Equipment procurement

The Service Provider shall procure the equipment specified in the Quotation from the manufacturer or authorised supplier identified at the time of order. The equipment supplied is manufactured by third-party companies. The Service Provider does not manufacture, perform quality control on, or independently warrant the equipment beyond what its manufacturer offers.

1.3. Mechanical installation

The Service Provider shall execute the mechanical installation of the specified equipment, comprising: equipment mounting in the false ceiling, duct laying and joining, hanger and support fitting, grille and diffuser fitting, and functional testing at handover.

1.4. Limited civil work

The civil work within the Service Provider's scope is strictly limited to: (a) core cutting through walls and RCC slabs for duct passages; and (b) cutting openings in walls for grilles and louvers. No other civil work is included.

1.5. Services not included

The following services are expressly excluded from the Service Provider's scope and shall be performed by the Client's own contractors:

- All electrical work, including cabling, MCBs, isolators, earthing, panel connections and surge protection
- False ceiling fabrication, gypsum and POP work, plastering and making-good of cut surfaces
- Painting and finishing around installation points
- Plumbing and drainage
- Fire alarm, smoke detection, BMS and building automation integration
- Routine maintenance and filter cleaning after project handover (unless a separate Annual Maintenance Contract is signed)

The Service Provider shall have no liability whatsoever for defects, accidents, fires, electrical faults, water damage, structural movement or consequential losses arising from any of the foregoing excluded services.

2. PERFORMANCE SCOPE

2.1. What the system delivers

The engineered system delivers: (a) filtered fresh air at the designed CMH at each supply diffuser; (b) PM2.5 levels at the point of supply meeting the installed filter's specification; and (c) positive pressurisation of the designed envelope at the calculated air-change rate. These three deliverables constitute the warranted performance of the system.

2.2. What the Service Provider cannot warrant

The Service Provider does not warrant overall indoor PM2.5 or AQI levels within the building. Indian residential buildings are not airtight envelopes. Indoor AQI in any space is materially affected by the building envelope, occupant use patterns and external infiltration through jaali doors, balcony doors, kitchen windows, gaps under entrance doors and similar openings, none of which fall within the Service Provider's engineering scope. The warranted deliverable is clean air supplied at the diffuser, not clean indoor air across the entire home at all times.

2.3. Equipment access

All installed ERVs, exhaust fans and ducting must remain accessible behind the false ceiling. The Client shall ensure that trap doors or access panels are provided at each unit location prior to closure of the false ceiling. If equipment is sealed permanently against this requirement, any consequential cost of accessing it for warranty repair, maintenance or replacement, including the cost of breaking and reinstating the false ceiling, shall be borne by the Client.

2.4. Site readiness and concealed services

Prior to commencement of core cutting, the Client shall confirm in writing (including via a signed Site Readiness Checklist) that the marked cutting paths are clear of concealed electrical wiring, plumbing, structural reinforcement and other concealed services. The Service Provider relies on the Client's or architect's confirmation of these paths and shall not be responsible for damage to concealed services that could not reasonably have been identified prior to cutting.

2.5. Sound levels

Equipment noise levels are governed by the manufacturer's specifications. The Service Provider designs ducting to minimise transmitted noise within calculated parameters. Ventilation systems are not silent in operation and the Service Provider makes no warranty of silent operation.

3. COMMERCIAL TERMS

3.1. Consideration

In consideration of the services rendered under this Agreement, the Client shall pay the amounts set out in the Quotation as referenced above, comprising machinery and accessories (Section A), engineering and consultancy (Section B), and labour and supervision (Section C). All amounts are exclusive of taxes unless explicitly stated.

3.2. Payment schedule

- 20% advance is payable upon acceptance of the Quotation, for finalisation of the floor plan and commencement of engineering drawings.
- Balance equipment cost (100% of Section A) is payable in full before procurement of goods from the supplier.
- Labour charges (Section C) are payable to the Service Provider on Day 1 of installation, in full.

The Service Provider acts as the sole intermediary between the Client and the installation team. The Service Provider manages day-to-day site supervision and releases payment to the installation team against work actually completed each day. The Client deals only with the Service Provider on all labour and supervision matters.

3.3. Late payment

Any payment delayed beyond 7 days from the due date shall attract interest at 18% per annum, accruing daily until paid. The Service Provider reserves the right to suspend work, retain unfitted materials and demobilise the installation team in case of non-payment.

3.4. Installation consumables

Adhesives, sealants, insulation tapes, glues, clamps, screws and similar consumables required during installation are billed at actuals as per site consumption, over and above amounts quoted.

3.5. Diffuser sizing and quantity adjustments

The size and quantity of diffusers listed in the Quotation are indicative. Some may be revised based on the final site drawing and on-site requirements, particularly where 6-inch / 150mm pipes are used. Any cost adjustment shall be reflected in the final invoice.

3.6. Scope variations

Any change in scope after acceptance of the Quotation, including additional outlets, additional equipment or relocation of installed components, shall be quoted and billed separately. All variations must be confirmed in writing (WhatsApp or email is acceptable) before being carried out.

3.7. GST

GST at the applicable rate (currently 18%) is charged on Sections A and B as per applicable rates. Labour charges in Section C are quoted on a lump-sum basis. The place of supply for the engagement determines whether CGST and SGST or IGST applies.

3.8. Cancellation

If the Client cancels the engagement after the 20% advance is paid, the advance shall be non-refundable, as it covers drawing preparation, site visits, engineering work and procurement coordination already undertaken. If cancellation occurs after equipment procurement has commenced, equipment costs already committed to the supplier shall be payable in full by the Client.

4. RISK, LIABILITY AND INDEMNITY

4.1. Equipment warranty pass-through

All installed equipment carries the manufacturer's standard warranty, which passes through to the Client. Any product defect, malfunction, manufacturing fault or internal equipment fault is the responsibility of the manufacturer or authorised importer. Warranty claims shall be raised directly with the manufacturer; the Service Provider shall assist with coordination on a best-efforts basis but is not the warranty obligor.

4.2. Limitation of liability

The Service Provider's aggregate liability under or in connection with this Agreement, whether in contract, tort, negligence, breach of statutory duty or otherwise, shall not exceed the total engineering and labour fees actually received by the Service Provider for the Project. In no event shall the Service Provider be liable for indirect, consequential, incidental, special or punitive damages, including but not limited to loss of property, loss of business, loss of profits, or damage to the building or its contents arising from equipment failure, electrical faults, civil work performed by other contractors, or post-handover misuse or non-maintenance.

4.3. Client indemnity

The Client shall indemnify, defend and hold harmless the Service Provider, its proprietors and personnel against any claims, damages, losses, costs or expenses (including reasonable legal fees) arising from: (a) work performed by the Client's electrician, civil contractor, false ceiling team, painter or any other third-party contractor on the Project Site; (b) defects in the building, electrical system, or premises that existed prior to or independent of the Service Provider's work; (c) misuse, lack of maintenance or unauthorised modification of the installed equipment after handover; and (d) any breach of the Client's obligations under this Agreement.

4.4. Post-handover responsibility

Following project handover and signature of the Completion & Handover Certificate, routine maintenance, filter cleaning (every 3 to 6 months), periodic inspection of ERV cores and ducting, and operation of the equipment within manufacturer specifications shall be the sole responsibility of the Client. Failure to maintain may void the manufacturer warranty and absolves the Service Provider of any liability for performance deterioration, equipment failure or consequential damage.

4.5. Insurance

The Service Provider maintains, or shall maintain, Commercial General Liability insurance as part of its prudent operating practice. The Client is encouraged to maintain its own property and contents insurance covering the Project Site during and after the engagement.

5. GENERAL PROVISIONS

5.1. Force majeure

Neither Party shall be liable for any delay or failure to perform its obligations under this Agreement to the extent caused by events beyond its reasonable control, including acts of God, government action, lockdowns, riots, strikes, severe weather, pandemics, import or customs disruptions, or supplier failure.

5.2. Confidentiality

Each Party shall keep confidential any non-public information disclosed by the other Party in the course of this engagement, except as required by law or for the proper performance of this Agreement.

5.3. Governing law and dispute resolution

This Agreement shall be governed by and construed in accordance with the laws of India. Any dispute arising from or in connection with this Agreement shall first be attempted to be resolved through mutual discussion between the Parties within 30 days of the dispute arising. Failing such resolution, the dispute shall be referred to and finally resolved by arbitration under the Arbitration and Conciliation Act, 1996, with the seat of arbitration at New Delhi, before a sole arbitrator appointed by mutual agreement of the Parties. The courts at Delhi and Gautam Buddh Nagar shall have exclusive jurisdiction over any matters not subject to arbitration.

5.4. Entire agreement

This Agreement, together with the Quotation and the Client Welcome & Scope Pack, constitutes the entire agreement between the Parties in respect of its subject matter and supersedes all prior negotiations, representations and agreements, whether written or oral.

5.5. Amendment

No amendment or variation of this Agreement shall be effective unless made in writing and signed by both Parties.

5.6. Severability

If any provision of this Agreement is found by a court or tribunal of competent jurisdiction to be invalid, illegal or unenforceable, the remaining provisions shall continue in full force and effect.

5.7. Notices

Notices under this Agreement shall be delivered to the Parties' respective addresses set out above, or to such email addresses or mobile numbers as the Parties have used for communication during the engagement. Communication via WhatsApp or email between the Parties' designated representatives shall be considered effective notice for operational matters.

SIGNED AND ACCEPTED BY THE PARTIES

The Parties have executed this Agreement on the date first set out above.

FOR THE SERVICE PROVIDER

Urban Tech Home Solutions

(BreatheWise)

Signature: _____

Name: _____

Designation: _____

Date: _____

Place: _____

FOR THE CLIENT

Signature: _____

Name: _____

Designation: _____

Date: _____

Place: _____

This Agreement is issued in two original copies, one for each Party.